



SPONSOR: Rep. Romer & Sen. Poore & Sen. Lockman

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 204

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO CHILD CARE LICENSING.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Chapter 30A, Title 14 of the Delaware Code by making deletions as shown by strike through
2 and insertions as shown by underline as follows:

3 § 3009A. Child Care Complaint Investigative Unit.

4 (a) The Department must establish a Child Care Complaint Investigative Unit within the OCCL. The Child Care
5 Complaint Investigative Unit is responsible for the intake, investigation, resolution, and documentation of complaints
6 received concerning licensed child care facilities and providers in this State.

7 (b) The Child Care Complaint Investigation Unit must do all of the following:

8 (1) Receive and document complaints related to alleged violations of child care regulations, including health
9 and safety standards, supervision, licensing requirements, and staff conduct.

10 (2) Create clear policies, procedures, and consequences for complaint investigations.

11 (3) Outline processes for substantiating complaints and administration of consequences.

12 (4) Coordinate with the Division of Family Services and appropriate law enforcement entities when a
13 complaint involves suspected child abuse, neglect, or criminal conduct.

14 (5) Maintain a centralized, confidential record-keeping system of all complaints, findings, and resolutions.

15 (6) Prepare and submit an annual public report summarizing the number and nature of complaints received,
16 the outcomes of investigations, and any resulting enforcement actions.

17 (c) The Department must ensure that substantiated complaint findings are accessible to the public through a
18 searchable online database consistent with applicable privacy laws and regulations.

19 (d) All personally identifiable information concerning children, families, and complainants must remain
20 confidential and may not be disclosed except as permitted or required by law. Complaint reporting may not be confidential,
21 but identifying information must remain confidential and may not be disclosed except as permitted or required by law.

22 Section 2. In implementing this Act, the Department of Education must assign personnel and resources to the
23 Child Care Complaint Investigation Unit from within existing Office of Child Care Licensing staff and operational
24 resources.

25 Section 3. This Act is effective immediately and is to be implemented no later than 90 days from the date of the
26 Act's enactment.

SYNOPSIS

This Act establishes a dedicated Child Care Complaint Investigation Unit within the Office of Child Care Licensing, under the Department of Education, to ensure timely, transparent, and accountable responses to complaints involving licensed child care providers. It requires no new funding and is to be implemented within existing staffing and resources.